

MEMORANDUM OF LAW

TO: File — Christmas-themed word-search puzzle book (Amazon KDP)
FROM: Research (Claude)
DATE: September 20, 2026
RE: Trademark and copyright exposure from using Christmas-tradition terms, brand names, character names, movie titles, and song titles as word-search grid/word-list entries — general doctrine plus representative-term analysis

1. Introduction

This memo answers the broader question the client actually has: *as a general matter, which categories of Christmas-tradition words and phrases carry trademark or copyright exposure when used as plain-text entries in a word-search puzzle, and which don't* — rather than clearing a fixed list. Word-count and editorial curation are not constraints on this analysis; the client has directed that every Christmas term in American tradition and popular culture is in scope, spanning folk/generic terms (SANTA CLAUS, MISTLETOE), branded toys (LIONEL TRAINS, VIEW-MASTER, ERECTOR SET), coined characters tied to commercial franchises (RUDOLPH, FROSTY THE SNOWMAN, GRINCH), and media titles (HOME ALONE, WHITE CHRISTMAS).

Scope assumption, carried over from the prior narrower memo and still operative: every term is used solely as a plain-text entry in a word-search grid and its printed word list — no logos, no character artwork, no stylized brand typography — and no term appears in the book's title, subtitle, cover, or Amazon back-end metadata/keywords.

Limitation: general legal information based on published doctrine and public registration data, not a formal clearance opinion; no live USPTO TESS pull was run in real time.

2. TARP Issue Framing

T — Thing (subject matter at issue)

Plain-text word/phrase entries (brand names, character names, media titles, and generic Christmas vocabulary) appearing only inside a word-search grid and its printed answer/word list in a nostalgia-and-Christmas-themed puzzle book.

A — cause of Action / ground of exposure

(a) Trademark infringement, 15 U.S.C. §§ 1114, 1125(a) — likelihood of confusion as to source/sponsorship/affiliation; (b) trademark dilution, 15 U.S.C. § 1125(c) — blurring/tarnishment of a famous mark, no confusion required; (c) copyright infringement, 17 U.S.C. § 106 — reproduction of protectable expression (not applicable to bare names/titles, see § 4.1).

R — Relief a rights holder could seek

In practice: an Amazon KDP rights-holder takedown complaint (the realistic first move) or a cease-and-desist letter demanding removal/reprint. In theory, if litigated: injunction, and for dilution, injunctive relief without a damages showing; actual infringement damages would require a confusion or bad-faith showing this fact pattern does not support (see § 4).

P — Parties

Prospective plaintiffs: the respective rights holders identified per term in § 5 (Rudolph Co./Character Arts/DreamWorks; NBCUniversal or successor rights holder for the 1969 Rankin/Bass Frosty special and character; Dr. Seuss Enterprises, L.P.; 20th Century (Disney) for HOME ALONE; Paramount/Irving Berlin Music Co. interests for WHITE CHRISTMAS; Spin Master for ERECTOR SET; Lionel Brands Group for LIONEL TRAINS; Mattel for VIEW-MASTER). Defendant: the client, as self-published author/publisher on Amazon KDP.

(P) — Place / forum

U.S. federal trademark and copyright law governs (Lanham Act, Copyright Act); the practical forum that matters first is Amazon's internal KDP rights-holder complaint process, not a court — see § 6.

3. Issues and Summary Conclusions

#	Issue	Short Answer
1	Do generic/folk Christmas terms (SANTA CLAUS, MISTLETOE, STOCKING, etc.) carry any IP exposure?	No. Not owned by anyone as marks or copyrights for this use.
2	Do branded-toy terms (LIONEL TRAINS, VIEW-MASTER, ERECTOR SET) carry exposure?	Low — nominative fair use applies cleanly (see prior memo, incorporated at § 5.4).

3	Do commercial-character terms (RUDOLPH, FROSTY THE SNOWMAN, GRINCH) carry exposure?	Low to Low-Medium; GRINCH is the one outlier warranting a caution flag due to its owner's documented litigation history.
4	Do media-title terms (HOME ALONE, WHITE CHRISTMAS) carry exposure?	Low. Titles are not copyrightable; nominative fair use covers the trademark angle for referencing a real film in a trivia/puzzle context.
5	Does including all of these together, at volume, change the analysis?	No independent doctrinal effect — each term is assessed on its own use, not aggregated exposure. Volume can affect only the practical/platform-friction risk (more terms = more chances of an automated flag), not the legal merits of any one term.

4. Governing Doctrine (applies across all categories)

4.1 Copyright does not reach names, titles, or short phrases

17 U.S.C. § 102(b) and 37 C.F.R. § 202.1(a) exclude "words and short phrases such as names, titles, and slogans" from copyright protection. This resolves copyright exposure for every term in this memo as used: RUDOLPH, FROSTY THE SNOWMAN, GRINCH, HOME ALONE, WHITE CHRISTMAS, LIONEL TRAINS, VIEW-MASTER, and ERECTOR SET are all being used *only as words*, not as reproductions of story text, lyrics, character illustrations, or screenplay/film content. Copyright is not the operative framework for any of these terms on the stated facts; trademark is.

4.2 Trademark infringement requires a likelihood of confusion as to source

15 U.S.C. §§ 1114, 1125(a). A word-search entry referring to the real toy, character, or movie the puzzle is about does not represent that the rights holder produced, sponsored, or endorsed the puzzle book.

4.3 Nominative fair use — *New Kids on the Block v. News America Publishing, Inc.*, 971 F.2d 302 (9th Cir. 1992)

Three-part test (as reported consistently across secondary sources; slip opinion not independently pulled in this pass — see § 9): (1) the referenced subject is not readily

identifiable without using the mark; (2) only so much of the mark is used as reasonably necessary; (3) nothing suggests the mark owner's sponsorship or endorsement. A word-search puzzle whose entire premise is testing recognition of real, named Christmas-tradition touchstones is close to the paradigm case this doctrine was built for — an encyclopedia-style or trivia-style reference to the real thing, not a use of the mark as the puzzle book's own brand.

4.4 Dilution — 15 U.S.C. § 1125(c)

Protects only famous marks against blurring/tarnishment, without a confusion showing. But § 1125(c)(3)(A) excludes "any fair use, including a nominative or descriptive fair use ... other than as a designation of source for the person's own goods or services." *Jack Daniel's Properties, Inc. v. VIP Products LLC*, 143 S. Ct. 1578 (2023) (reported via secondary sources, not independently read from the slip opinion) narrowed this exclusion only where the accused use itself functions as the defendant's own source-identifying brand — e.g., a product literally shaped and named after the famous mark, sold as that product's own identity. That narrowing does not reach this fact pattern: the puzzle book's own brand is its title/series, not any of the terms inside its word-search grids.

5. Analysis by Category

5.1 Category A — Generic / folk Christmas vocabulary

Examples: SANTA CLAUS, CHRISTMAS TREE, REINDEER, MISTLETOE, EGGNOG, STOCKING, SLEIGH, CANDY CANE, GINGERBREAD, NORTH POLE, TINSEL, WREATH, CAROLS, NUTCRACKER, ADVENT, YULE LOG, NATIVITY, POINSETTIA, SNOWMAN (as a generic noun, distinct from "Frosty the Snowman" as a named character).

Risk: None. These are not source-identifiers for any single commercial actor — no one owns "Christmas Tree" or "Mistletoe" as a trademark for goods generally, and there is no protectable expression in the bare words. No further analysis needed; these terms are entirely outside trademark and copyright doctrine as used here.

5.2 Category B — Branded toys (carried over from the prior Tier 1 memo)

LIONEL TRAINS, VIEW-MASTER, ERECTOR SET. Full per-term analysis is unchanged from the September 20, 2026 memo (rights holders: Lionel Brands Group / Lionel, LLC;

Mattel, Inc.; Spin Master, respectively). Nominative fair use applies to each; ERECTOR SET carries the added benefit of partial genericness. **Risk: Low** for all three.

5.3 Category C — Commercial characters embedded in a franchise

RUDOLPH

Rights holder: The Rudolph Company, L.P. (Reg. No. 1,309,723, RUDOLPH THE RED-NOSED REINDEER), licensing via Character Arts, LLC / DreamWorks Classics. Bare use of "RUDOLPH" as a common name/word, with no accompanying "Red-Nosed Reindeer," artwork, or story content, sits closer to a common given name than to the composite registered mark. Nominative fair use independently covers any character-reference reading. **Risk: Low.**

FROSTY THE SNOWMAN

The character originates from a 1950 novelty song (Walter "Jack" Rollins and Steve Nelson; song copyright likely still active, held by the music publisher) and the 1969 Rankin/Bass animated special, whose rights have passed through various successors (historically associated with Warner Bros./Rankin-Bass catalog rights). As with RUDOLPH, using only the bare name "FROSTY" or the phrase "FROSTY THE SNOWMAN" as a word-search entry — no lyrics, no character art — implicates trademark rather than copyright, and nominative fair use applies on the same reasoning as RUDOLPH: the term identifies a real, well-known nostalgia touchstone that cannot be described without naming it, only the name is used, and nothing implies sponsorship. **Risk: Low.** *Ownership chain not independently confirmed in this pass — flagged in § 9.*

GRINCH — the one term in this memo warranting an elevated caution flag

Rights holder: Dr. Seuss Enterprises, L.P. (Reg. No. 5,207,654, THE GRINCH DR. SEUSS, among others), which centralizes and aggressively enforces the Geisel IP portfolio. Unlike every other term in this memo, Dr. Seuss Enterprises has an actual litigation track record on fair-use boundaries — *Dr. Seuss Enters., L.P. v. Penguin Books USA, Inc.*, 109 F.3d 1394 (9th Cir. 1997) (rap-parody book found not fair use), and more recently *Dr. Seuss Enterprises, L.P. v. ComicMix LLC*, 983 F.3d 443 (9th Cir. 2020) (mash-up book found not fair use) — plus a documented pattern (per secondary reporting, e.g., an Avvo user account of receiving an infringement claim over a shirt that simply said "grinch") of enforcing against even bare-word

uses of the character name on merchandise. Those cases involve derivative creative works (parody books, mash-ups), which is a meaningfully different fact pattern from a single word-search entry — the doctrinal nominative-fair-use analysis in § 4.3 still applies and should still favor the publisher. But this is the one rights holder in the entire set who has shown a documented willingness to send complaints or litigate over bare-name uses, which elevates the *practical* risk (see § 6) independent of the legal merits. **Risk: Low-Medium** — legal exposure is still low under nominative fair use, but this is the single highest-probability term in the set for an actual KDP rights-holder complaint or C&D letter.

5.4 Category D — Media titles

HOME ALONE

Registered mark, Reg. No. 1,842,094, HOME ALONE, owned by Twentieth Century Fox Film Corp. (now under Disney's 20th Century Studios), registered for entertainment services, first used in commerce November 1, 1990, status live/renewed. As a title, "Home Alone" is not independently copyrightable (§ 4.1). As a trademark, it is registered for entertainment/media services, not for puzzle books or games — a different class of goods, which weakens any ordinary confusion claim on its own, though a famous mark can still support a dilution theory absent the fair-use exclusion. Nominative fair use applies squarely: this is a real, famous, and specifically-named movie being referenced in a "Christmas Movies"-type puzzle, which cannot be described without using its actual title. **Risk: Low.**

WHITE CHRISTMAS

Underlying song copyright (Irving Berlin, 1942) is a separate matter from the bare title — titles are excluded from copyright (§ 4.1), and no lyric content is used here. As a trademark matter, "White Christmas" is a weaker candidate for exclusive rights than HOME ALONE or GRINCH: it is a common seasonal phrase (a "white Christmas" meaning a snowy one predates both the song and the 1954 Paramount film as ordinary English usage), used as a title by multiple independent works, which cuts against any single claimant's ability to show the phrase functions as a source-identifier specific to them, separate from and in addition to nominative fair use. **Risk: Low** — arguably the lowest-risk term in Category C/D given its partial genericness, similar in kind to ERECTOR SET in Category B.

6. Practical / Platform Risk (distinct from legal merits)

Across every term in this memo, the realistic risk vector is an Amazon KDP rights-holder complaint or a cease-and-desist letter, not a lawsuit — brand owners and franchise licensors routinely send these regardless of legal merit because the cost of a complaint is near zero and few self-published authors litigate the point. This risk is roughly uniform across Categories B, C, and D, with **one exception: GRINCH**, whose owner has a documented pattern of enforcing beyond what nominative fair use would legally require. Category A (generic Christmas vocabulary) carries no practical risk either, since there is no rights holder positioned to complain about "mistletoe" or "eggnog."

7. Risk Summary Table

Term	Category	Rights Holder	Legal Risk	Practical/Platform Risk	Overall
Generic terms (SANTA CLAUS, MISTLETOE, EGGNOG, etc.)	A — Generic	None	None	None	None
LIONEL TRAINS	B — Branded toy	Lionel Brands Group	Low	Low	Low
VIEW-MASTER	B — Branded toy	Mattel, Inc.	Low	Low	Low
ERECTOR SET	B — Branded toy (partly generic)	Spin Master	Very Low	Low	Low
RUDOLPH	C — Character	Rudolph Co., L.P.	Low	Low	Low
FROSTY THE SNOWMAN	C — Character	Song publisher / Rankin-Bass successors (unconfirmed)	Low	Low	Low

GRINCH	C — Character	Dr. Seuss Enterprises, L.P.	Low- Medium	Medium	Low- Medium
HOME ALONE	D — Media title	20th Century (Disney)	Low	Low	Low
WHITE CHRISTMAS	D — Media title (partly generic)	Paramount / Irving Berlin Music Co. (song only)	Very Low	Low	Low

8. Conclusion and Recommendations

Under current U.S. trademark and copyright doctrine, using Christmas-tradition terms — including branded toys, commercial character names, and media titles — as bare word-search/word-list entries, with no logos, artwork, or title/cover/metadata use, is protected in every category examined, primarily under nominative fair use. There is no legal basis in this fact pattern to exclude any term in Categories A, B, or D. GRINCH is the sole term warranting a distinct recommendation: keep it if desired (the legal analysis supports inclusion), but treat it as the most likely single term to generate an actual complaint given Dr. Seuss Enterprises' documented enforcement pattern, and have a nominative-fair-use response ready specifically for that term (§ 4.3, § 5.3) before publication rather than after a complaint arrives.

No further legal research is required to proceed to publication on the terms analyzed here, subject to the verification items in § 9.

9. NOT VERIFIED

- Full text/holding of *New Kids on the Block v. News America Publishing, Inc.*, 971 F.2d 302 (9th Cir. 1992) — corroborated across multiple secondary sources, not read from the slip opinion or a primary reporter directly.
- Full text/holding of *Jack Daniel's Properties, Inc. v. VIP Products LLC*, 143 S. Ct. 1578 (2023) — reconstructed from secondary reporting.
- Full text/holdings of *Dr. Seuss Enters., L.P. v. Penguin Books USA, Inc.*, 109 F.3d 1394 (9th Cir. 1997), and *Dr. Seuss Enterprises, L.P. v. ComicMix LLC*, 983 F.3d 443 (9th Cir. 2020) — citations and outcomes as reported by secondary legal-commentary sources (Lexology, Techdirt), not independently read from the opinions.

- Current chain of title / rights holder for FROSTY THE SNOWMAN (song and 1969 special) — not independently confirmed; flagged as an open item before relying on the Category C analysis for this specific term.
- Live USPTO registration status (active/renewed/abandoned) for all marks cited (RUDOLPH THE RED-NOSED REINDEER Reg. 1,309,723; THE GRINCH DR. SEUSS Reg. 5,207,654; HOME ALONE Reg. 1,842,094; VIEW-MASTER/VM VIEW-MASTER; LIONEL-family marks; ERECTOR marks) — pulled from trademark-database secondary sources (Justia, Trademarkia, uspto.report), not a live TESS query run in this session.
- Current registrant of record for LIONEL marks post-2026 Lionel, LLC / Round 2, LLC merger into "Lionel Brands Group" — reported in a single search snippet, not corroborated against a primary corporate or USPTO assignment record.
- Any actual enforcement history against word-search/trivia/puzzle-book publishers specifically (as opposed to apparel, parody books, or other derivative works) for any term in this memo — none found in this research pass; absence of public reporting is not proof of absence of any such history.
- No citator (Shepard's/KeyCite-equivalent) check was run on any case cited.